



DECISION

Complaint No. : POS/545/2023/07/KHS
Name and address of the complainant : Mr. Asadullah
POF Complex 252-A, Sarwar Shaheed Road, Saddar, Karachi.
Name of the Agency Complained against : Police (ASI Zafar Chang)
Syed Maqsood Haider
Name & Designation of Investigating Officer : Director, Regional Office (South) Karachi
Rehana G. Ali Memon
Vetted by : Advisor-H.

Subject : **COMPLAINT AGAINST ASI ZAFAR CHANG, POSTED ON LINE DUTY AT SHIKARPUR, REGARDING ISSUANCE OF A DISHONoured CHEQUE OF Rs. 500,000/- (BELONGING TO MR. NASRULLAH JAVED AHMED) TOWARDS PAYMENT FOR RICE, AND ALLEGED THREATS AND INTIMIDATION UPON DEMAND OF THE DUE AMOUNT.**

THE COMPLAINT:

The Asadullah filed a complaint on 19-01-2023, alleging that ASI Zafar Chang, posted on line duty at Shikarpur, purchased rice worth Rs.500,000/- from him. In settlement of the payment, ASI Zafar Chang, rather than issuing a cheque in his own name, personally handed over a cheque dated 20-12-2022 for Rs.500,000/- drawn on the account of Mr. Nasrullah alias Javed Ahmed Shaikh. The complainant stated that upon presentation in the bank, the cheque was dishonored. He further alleged that when he demanded his lawful dues, ASI Zafar Chang abused him and extended serious threats of false implication in criminal cases and other dire consequences. The complainant solicited intervention of Provincial Ombudsman Sindh in the matter.

PROCEEDINGS:

2. At the outset, it is necessary to observe that this Office is legally empowered to investigate allegations of maladministration on the part of a public functionary. It is neither a forum for adjudication of civil disputes nor a criminal court competent to try offences relating to dishonour of cheque. Issues pertaining to dishonoring of cheque or recovery of money fall within the jurisdiction of the competent courts under the relevant laws. Therefore, the present complaint was entertained only to the limited extent of examining whether the respondent ASI misused his official authority and subjected the complainant to intimidation or harassment.

3. By condoning delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date), as well as after receiving mandatory Affidavit on Form "A" and other relevant documents, report was called from the Agency. In response to this Office, the Senior Superintendent of Police, Shikarpur vide letter dated 16-02-2023, forwarded the report dated 15-02-2023 submitted by the ASP/Sub-Divisional Police Officer, City Shikarpur. The inquiry report reveals that the monetary transaction was between the complainant and Mr. Nasrullah @ Javed Ahmed Shaikh. The said person admitted having taken Rs. 200,000/- as loan and having issued a blank cheque as security. It further transpired that no evidence surfaced during inquiry to establish that ASI

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Muhammad Zafar Chang purchased rice from the complainant or issued any cheque. The inquiry conducted that no material was available to substantiate allegations against the respondent police official.

4. During proceedings before this Office, both parties were afforded opportunity of hearing. The respondent ASI categorically denied having entered into any transaction with the complainant or having issued any cheque. The complainant, however, failed to produce any documentary proof of sale of rice worth Rs. 500,000/- to the respondent. No receipt, agreement, or record of sale was brought on record. The cheque in question admittedly pertains to the account of Mr. Nasrullah @ Javed Ahmed Shaikh. In view of the inquiry report and the material available on record, the dispute appears to be essentially a private monetary matter between the complainant and the said account holder.

FINDINGS:

5. From the record and material available it is found that:

- a. No documentary evidence has been produced to establish any sale transaction between the complainant and ASI Muhammad Zafar Chang.
- b. The inquiry conducted by the ASP/SDPO, City Shikarpur, clearly indicates that the monetary dispute was between the complainant and Mr. Nasrullah @ Javed Ahmed Shaikh.
- c. No credible evidence has been brought on record to demonstrate misuse of official authority, intimidation, or harassment by the respondent ASI.
- d. The matter, if any, pertains to a private civil and/or criminal dispute, which falls outside the statutory jurisdiction of this Office.

DECISION:

6. In exercise of powers vested in me under Section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date), the complaint is dismissed, as no maladministration on the part of ASI Muhammad Zafar Chang has been established. The complainant is at liberty to seek remedy from the competent forum, if so desired.

Given under my hand and seal of the office.



Sd /-

**(MUHAMMAD SOHAIL
RAJPUT)**

Sitara-e-Imtiaz PAS
Ombudsman, Sindh

Karachi, dated 26th February, 2026